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International Chamber of Commerce (ICC)

International Court of Arbitration

Case No. 29534/ICA3

Elcomponics Holdings B.V.

- Claimant -

v.

Invictus GmbH

- Respondent 1 -

and

Invictus Cable GmbH

- Respondent 2 -

ANSWER TO THE REQUEST FOR ARBITRATION

4 August 2025

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List of Defined Terms

ABGB	Austrian Civil Code (*Allgemeines Bürgerliches Gesetzbuch*)
Claimant	Elcomponics Holding B.V.
Completion Date	24 March 2023
GmbH	Limited Liability Company (*Gesellschaft mit beschränkter Haftung*)
SHA	Shareholders' Agreement dated 24 March 2023
SPA	Share Sale & Transfer Deed dated 7 June 2022
Invictus	Invictus GmbH (Respondent 1)
Invictus Cable	Invictus Cable GmbH (Respondent 2)
Elcomponics	Elcomponics Holding B.V. (Claimant)
Elcomponics Sales	Elcomponics Sales Private Limited
Respondent 1	Invictus GmbH
Respondent 2	Invictus Cable GmbH

A. Introduction

(1) In accordance with Article 5(1) of the 2021 ICC Rules of Arbitration ("**ICC Rules**"), Invictus GmbH ("**Respondent 1**" or "**Invictus**") and Invictus Cable GmbH ("**Respondent 2**" or "**Invictus Cable**"; together with Respondent 1 referred to as "**Respondents**") herewith submit their Answer to the Request for Arbitration filed by Elcomponics Holding B.V. ("**Elcomponics**" or "**Claimant**").

(2) Respondents contest all allegations of fact and law submitted in Elcomponics' Request for Arbitration unless they are expressly confirmed in this Answer to the Request for Arbitration.

B. The Parties and their Representatives

1. Claimant

(3) Claimant is

Elcomponics Holdings B.V.
Bavincklaan 7
1183AT Amstelveen
The Netherlands

(4) Elcomponics is a private limited company organized and existing under the laws of the Netherlands under the register number KVK 886186868. It is a 100% subsidiary of Elcomponics Sales Private Limited ("**Elcomponics Sales**"), a company organized and existing under the laws of India.

(5) Elcomponics Sales is part of the globally operating Elcomponics Group[1], which maintains offices worldwide and specializes in the design, manufacture and supply of complex wires and cables including wiring harnesses and power cables. With over 30 years of industry experience, Elcomponics Group has established itself as India's leading supplier of wire harnesses and component manufacturer for electrical systems and renewable energy applications.[2] Claimant was established by Elcomponics Sales as an investment holding company.[3]

(6) Elcomponics holds a 26% share in Invictus Cable GmbH (*see* below ¶¶ 13 *et seqq.*).

[1] Excerpt from Elcomponics' Website re Elcomponics Sales Pvt Ltd (**Exhibit R-001**).
[2] Excerpt from Elcomponics' Website re Group (**Exhibit R-002**).
[3] Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Recital D.

(7) In this arbitration, Elcomponics is represented by

Dr. Harish Narasappa (Independent)

and

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2. Respondents

(8) Respondent 1 is

Invictus GmbH
Industriegebiet 1
7011 Siegendorf
Austria

(9) Invictus is a Limited Liability Company (*Gesellschaft mit beschränkter Haftung* or "**GmbH**") organized and existing under the laws of Austria, registered with the Austrian Companies Register under register number FN 28666v.[4] The business purpose of Invictus includes, among others, the acquisition and management of shareholdings in companies, both in Austria and abroad. Invictus held a 74% share in Invictus Cable (*see* below ¶¶ 11 *et seqq.*).[5]

(10) By means of the Demerger and Acquisition Agreement (*Spaltungs- und Übernahmevertrag*) dated 27 March 2025, Invictus demerged among others the business unit relating to Invictus Cable including its share of 74% into Invictus Holding IC GmbH ("**Invictus Holding**"), effective as of 1 July 2024. Therefore, Invictus Holding now holds 74% of the shares in Invictus Cable.

4 Austrian Business Registry Excerpt for Invictus GmbH (**Exhibit R-003**).

5 Excerpt from the Demerger and Acquisition Agreement dated 27 March 2025 (**Exhibit R-004**), Clause 10.3.

(11) Respondent 2 is

Invictus Cable GmbH
Industriegebiet 1
7011 Siegendorf
Austria

(12) Invictus Cable is also a Limited Liability Company (*Gesellschaft mit beschränkter Haftung* or "**GmbH**") organized and existing under the laws of Austria, registered with the Austrian Companies Register under register number FN 515573x.[6]

(13) Invictus Cable was established on 10 July 2019 and constitutes a joint venture between Claimant and now Invictus Holding, with Claimant holding a 26% share and Invictus Holding owning the remaining 74%.[7]

(14) Invictus Cable is a pioneer and market leader in the field of extruded flat flexible cables. With over two decades of specialized expertise, it has built a reputation for excellence in the production of extruded flat conductors (FFCe), assembled wiring harnesses and three-dimensional printed circuits. Its core customer base lies in the automotive industry, complemented by tailored solutions for home appliances and various other industrial sectors. Invictus's innovation is protected by a robust portfolio of patents covering a wide spectrum of cable dimensions, each engineered to meet precise customer specifications.[8] With manufacturing operations in Austria and a well-established sales and distribution presence across the US, EU, and China, Invictus Cable plays a leading role in shaping the global market for advanced cable technologies.[9]

(15) In this arbitration, Respondents are represented by

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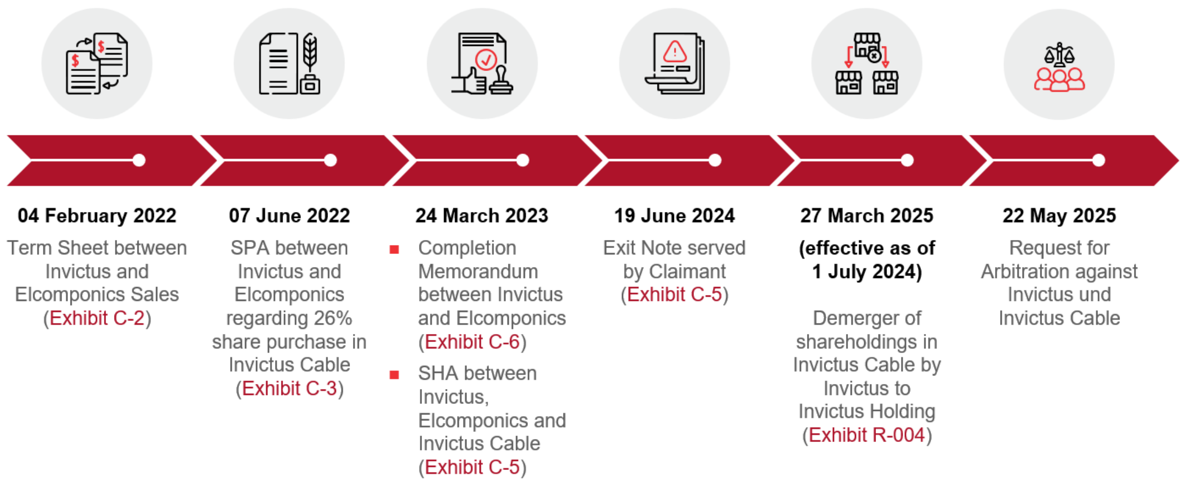
6 Austrian Business Registry Excerpt for Invictus Cable GmbH (**Exhibit R-005**).
7 Austrian Business Registry Excerpt for Invictus Cable GmbH (**Exhibit R-005**).
8 Excerpt from Invictus Cable GmbH's Website (**Exhibit R-006**).
9 Term Sheet (**Exhibit C-2**), Clause 6(3).

C. The Dispute

(16) Respondents engaged in the business relationship with Claimant to build a long-term, strategic partnership. The parties' collaboration started with a mutual vision – reflected in a non-binding Term Sheet dated 4 February 2022, concluded between Elcomponics Sales and Invictus.[10] They expressed their intention to jointly pursue strategic opportunities in Europe, North America and India. This vision encompassed two key transactions: (i) the acquisition by Elcomponics Sales of 26% of the shares of Invictus Cable from Invictus and (ii) the establishment of two 50:50 joint ventures in North America and India.[11]

(17) To execute on their partnership plans, Invictus and Claimant concluded a Share Sale and Transfer Deed ("**SPA**") on 7 June 2022, under which Invictus committed to transfer 26% of the shares in Invictus Cable to Elcomponics "*on the Completion Date*".[12] This transfer was duly effected on 24 March 2023 ("**Completion Date**") through the signing of the Completion Memorandum ("**Completion Memorandum**"). Simultaneously, Invictus, Invictus Cable and Claimant, entered into a Shareholders' Agreement ("**SHA**"), governing certain rights and obligations, including voting rights, exit strategies, dividend policies and confidentiality obligations.[13] At every stage, Respondents fulfilled their contractual obligations in accordance with the agreed terms.

(18) Without prior warning or meaningful engagement, Claimant sent the Exit Notice dated 19 June 2024 ("**Exit Notice**"). Thereby, Claimant sought to terminate the SHA according to Clause 6.1 of the SHA and exercise the Put Option under Clause 4.6(d).[14]



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[10] Term Sheet (**Exhibit C-2**).
[11] Term Sheet (**Exhibit C-2**), ¶ 1.
[12] Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 1.1(a)(ii).
[13] Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**).
[14] Exit Notice served by Claimant (**Exhibit C-8**), ¶ 4.

(19) In sum, Claimant alleged three grounds in its Exit Notice: (i) material breaches of warranties, particularly a fundamental warranty breach of the Completion Memorandum, (ii) omissions of crucial information, and (iii) non-disclosure of historic liabilities exceeding EUR 250,000. These very same allegations now form the cornerstone of Claimant's Request.

(20) These allegations are, however, not only unfounded but based on mischaracterizations of the agreements and a distortion of the parties' original intent. As will be demonstrated, Respondents acted lawfully, consistently, and in full alignment with the contractual framework. Claimant is therefore in breach of the parties' agreements.

(21) Furthermore, Claimant's storyline of willful disengagement by Respondents is false: Even months after issuing the Exit Notice on 19 June 2024, Claimant remained actively involved in the business relationship. Notably, its representative, Mr. Sandeep Rajpal, continued to participate in business operations with Respondents and signed legally binding contracts – well beyond the date of the purported termination.[15]

(22) Finally, Claimant's claims effectively rest on alleged breaches of representations and warranties; claims that fall squarely and exclusively within the scope of the SPA and the Completion Memorandum, not the SHA. Therefore, the SHA cannot serve as a valid basis for its termination or for the exercise of the Put Option.

(23) As will be shown in detail below, Respondents fully complied with their obligations, both under the SPA and the SHA (if one were to assume that Claimant's allegations relate to the SHA – *quod non*). In any case, Claimant's purported termination of the SHA and its exercise of the Put Option are both invalid and Claimant's claims must be dismissed (*see* ¶¶ 48 *et seqq.*). Before refuting Claimant's baseless claims, Respondents raise procedural objections: *First*, the arbitral tribunal lacks jurisdiction (*see* ¶¶ 24 *et seqq.*) and *second*, Respondents lack standing to be sued (*see* ¶¶ 37 *et seqq.*).

D. Procedural Objections

1. Objection on Jurisdiction

(24) Respondents respectfully submit that the arbitral tribunal has no jurisdiction over Claimant's claims. Claimant falsely commenced the present arbitration proceedings by relying on Clause 10.02 of the SHA[16] due to the following reasons: *First*, Claimant's claims arise exclusively from alleged breaches of contractual warranties under the SPA and the Completion Memorandum. Thus, the SHA is

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15 Email correspondence between Claimant, Respondents and third parties dated 10 October 2024 re Signed Contracts (**Exhibit R-007**).

16 Elcomponics' Request for Arbitration, ¶ 25.

inapplicable to the present dispute. This is essential, as the SHA and SPA (including the Completion Memorandum) are governed by distinct and incompatible arbitration clauses, which designate the Vienna International Arbitral Centre ("**VIAC**") as the proper forum – not the ICC (*see* ¶¶ 26 *et seqq.*).[17] *Second*, even if the arbitral tribunal were to accept that Claimant's claims partially arise under the SHA, Clause 11.2 of the SPA and Clause 6.3. of the Completion Memorandum shall nonetheless prevail (*see* ¶¶ 34 *et seqq.*).

a. The SPA Governs Claimant's Claims

(25) Clause 10.2 of the SHA, relied on by Claimant for the present arbitration, reads, in relevant parts, as follows:

> "*If the Dispute is not resolved amicably, the Dispute shall be referred to and finally resolved by binding arbitration in accordance with the ICC Rules of the International Chamber of Commerce. The seat of arbitration shall be Paris and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*"

(26) In contrast thereto, Clause 11.2 of the SPA entails the following arbitration clause, which is incorporated by reference into Clause 6.3 of the Completion Memorandum:

> "*This Deed and the rights and obligations arising out of or in connection with this Deed shall be governed by and construed with Austrian law. If the dispute is not resolved amicably, the dispute shall be referred to and finally resolved by binding arbitration in accordance with the rules of VIAC (Wiener Regeln). The seat of arbitration shall be Amsterdam and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*"

(27) These arbitration clauses are not only divergent in terms of forum, institutional rules, and *lex arbitri*, but also differ in their scope and the identity of the contracting parties: the SPA was concluded solely between Claimant and Invictus, whereas the SHA includes Invictus Cable as an additional party.

(28) In its Request, Claimant seeks that the arbitral tribunal declares its jurisdiction under Art 10.2 of the SHA and *e.g.* the non-disclosure of historic tax liabilities, a material breach of the material warranty in the Completion Memorandum and the validity of the serving of the Exit Notice, entitling Claimant to seek specific performance of the Put Option price.

(29) However, these claims are not shareholder disputes governed by the SHA. They are solely allegations of contractual warranty breaches under the SPA. This applies

[17] Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 11.2; Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), Clause 6.3.

particularly to Claimant's core allegation related to the accuracy and completeness of the provisional financial overview of 23 March 2023 ("**March 2023 Provisional Financial Overview**") and the alleged omission of certain tax and shareholder loan liabilities therefrom. These allegations are expressly addressed and governed by the warranty regime set forth in Clause 4.1(a) and schedule 3 of the SPA and are subject to the exclusive dispute resolution provision of Clause 11.2 thereof.[18] This becomes particularly evident, as Claimant itself acknowledges this by referring to the Completion Memorandum as the "*Governing clause*" for its claims[19] and requests the arbitral tribunal to declare a "*[m]aterial breach of the material warranty in the Completion Memorandum that the March 23 2023 Balance-Sheet gives a true and fair view.*"[20]

(30) The allegedly breached warranty is expressly contained in Clause 4.1(a) of the SPA and is subject to the regime of independent guarantees under Austrian law, as provided for in Section 880a of the Austrian Civil Code (*Allgemeines Bürgerliches Gesetzbuch*; "**ABGB**").[21] Furthermore, the SPA contains a comprehensive framework for warranty enforcement, including specifically negotiated limitation periods, liability exclusions and disclosure obligations. As such, schedule 3 of the SPA sets out "Seller's warranties" – a detailed framework of obligations spanning five pages and comprising no fewer than 13 provisions. These contractual provisions reflect the parties' intent to allocate risk in respect of pre-completion matters. Such provisions are entirely absent from the SHA.

(31) Claimant ignores thus that the SPA (together with the Completion Memorandum) and the SHA are separate and autonomous legal frameworks, each with its own operative scope and differing dispute resolution mechanisms. The SHA neither alters the SPA's dispute resolution clause nor enables consolidating two different arbitration regimes or grants ICC jurisdiction over SPA disputes. On the contrary: The SHA governs post-completion shareholder relations. Its scope does not extend to claims arising out of (i) the negotiations, (ii) execution or (iii) performance of the SPA, particularly not to claims alleging breaches of warranties and indemnities specifically addressed therein.

(32) Moreover, the Put Option under Clause 4.6(d) of the SHA, which Claimant invokes as the basis for its relief, does not create an independent cause of action. It is a contingent remedy, triggered only upon a breach under the SPA. As such, the Arbitral Tribunal constituted under the ICC Rules ("**ICC Arbitral Tribunal**") – as referenced in Clause 10.2 of the SHA – lacks jurisdiction to determine whether such a breach occurred. That question falls squarely within the exclusive jurisdiction of a tribunal constituted under the VIAC Rules, which governs

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[18] Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**).
[19] Elcomponics' Request for Arbitration, Section 4.1, ¶ 20.
[20] Elcomponics' Request for Arbitration, Section 5.1.b.ii, ¶ 22.
[21] Section 880a of the Austrian Civil Code (ABGB) (**Exhibit RL-001**).

disputes arising under the SPA [22] and the Completion Memorandum [23] ("**VIAC Arbitral Tribunal**"). Unless and until the VIAC Arbitral Tribunal renders a binding determination on the alleged breach of the SPA and the Completion Memorandum, the ICC Arbitral Tribunal is not competent to entertain any claim under the Put Option. Any attempt to do so would constitute a clear jurisdictional overreach and a direct violation of the parties' agreed upon dispute resolution mechanism.

(33) In sum, Claimant's attempt to circumvent the agreed dispute resolution framework by recharacterizing SPA-based warranty claims as SHA disputes is inadmissible. The ICC Arbitral Tribunal shall thus decline jurisdiction over the present claims, which are subject to arbitration under the VIAC Rules pursuant to Clause 11.2 of the SPA and Clause 6.3 of the Completion Memorandum.

b. *In Eventu*, the SPA Prevails Regardless of Any SHA Relevance

(34) Even if the ICC Arbitral Tribunal were to find that Claimant's claims do not solely concern alleged breaches of warranties and indemnities stemming from the SPA, but arise partly from the SHA, Clause 11.2 of the SPA and Clause 6.3. of the Completion Memorandum shall govern the present dispute:

(35) According to established case law, where two overlapping subject matters are governed by differing dispute resolution clauses, the clause contained in the agreement at the "*commercial centre*" of the transaction prevails.[24] As elaborated above, the core issue of the present dispute lies firmly in the SPA as the alleged misrepresentations and omissions occurred in connection with (i) the March 2023 Provisional Financial Overview contained in the Completion Memorandum and (ii) the Completion Memorandum itself; both forming an integral part of the SPA's purchase and sale framework. The SPA, together with the Completion Memorandum, is the commercial and legal nucleus of the parties' joint venture arrangement. Absent these contracts, any Put Option lacks both operative effect and enforceability. Accordingly, the SPA is not ancillary but central to the dispute at hand.

(36) Therefore, Respondents request the ICC Arbitral Tribunal to decline jurisdiction over Claimant's claims.

2. Invictus Cable is Not a Party to the Dispute

(37) Claimant initiated this arbitration against Invictus and Invictus Cable. It thereby ignored that Invictus Cable's inclusion as a party to this arbitration is without

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22 Clause 11.2 of the Share Sale & Transfer Deed (SPA) dated 7 June 202 (**Exhibit C-3**).

23 Clause 6.3 of the Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**).

24 UBS AG & UBS Securities Llc v. HSH Nordbank AG [2009] EWCA Civ 585 (18 June 2009) (**Exhibit RL-002**).

substantive merit: Claimant does not even allege, let alone establish, that Invictus Cable has engaged in any conduct or assumed any obligation that could give rise to liability in the present proceedings:

(38) *First*, Invictus Cable is not a party to the SPA (*see* ¶¶ 39 *et seqq.*). *Second*, if Claimant's allegations were to relate to the SHA – *quod non* – Invictus Cable is not subject to any obligations under the SHA that it could have breached (*see* ¶¶ 41 *et seqq.*).

a. Invictus Cable Is Not a Party to the SPA

(39) The present arbitration is about alleged breaches of warranties and indemnities contained in the SPA. Invictus Cable is not, and has never been, party to the SPA. It has neither made any representations or warranties to Claimant nor undertaken any contractual obligations.

(40) The Completion Memorandum, the March 2023 Provisional Financial Overview, and the alleged omissions in respect of the shareholder loan, as well as tax liabilities all fall squarely within the risk-allocation regime established under the SPA and concern Invictus. Claimant's attempt to extend liability to Invictus Cable ignores the SPA's clear definition of its parties. In the absence of a contractual nexus, there exists no jurisdictional or substantive basis upon which a claim could be asserted against Invictus Cable under the SPA.

b. Invictus Cable Has No Obligations under the SHA

(41) While Invictus Cable is a party to the SHA, Claimant cites no relevant SHA provision allegedly breached by Invictus Cable. In particular, Claimant's request for performance of the Put Option price pursuant to Clause 6.1 of the SHA is directed only against Invictus as the majority shareholder of Invictus Cable.[25] This is understandable, as the Put Option does not impose any obligation on Invictus Cable. Nor could it do so under mandatory Austrian law, since Invictus Cable is a limited liability company (GmbH) and, as such, is not permitted to hold its own shares. Consequently, Invictus Cable would be legally unable to fulfil such claims. It merely provides a contractual remedy exercisable by Claimant against Invictus if an "*event of default*" occurs.

(42) The underlying breach allegedly triggering such an "*event of default*", *in concreto*, the misstatement of the March 2023 Provisional Financial Overview, is rooted entirely in the SPA. As shown above, Invictus Cable is not the subject to the warranty obligation or the alleged misrepresentation. The mere existence of a remedy clause in the SHA does not suffice to transform Invictus Cable into a party to an arbitration concerning the SPA.

25 Elcomponics' Request for Arbitration, Section 5.2, ¶ 22.

(43) As such, Invictus Cable lacks standing to be sued (*mangelnde Passivlegimitation*) with respect to the asserted claims.

3. Invictus Lacks Standing to be Sued Due to Corporate Restructuring

(44) As outlined above, pursuant to the Demerger and Acquisition Agreement dated 27 March 2025, Invictus transferred the business unit related to Invictus Cable including its share of 74% to Invictus Holding, effective as of 1 July 2024 by way of universal succession (*Gesamtrechtsnachfolge*).[26] As a result, Invictus Holding now holds 74% of the shares in Invictus Cable. Consequently, Invictus ceased to be a shareholder of Invictus Cable and no longer holds any direct or indirect ownership interest in or legal responsibility for the entity.

(45) The legal implication of this transaction is unequivocal: Invictus is no longer entitled to exercise rights, nor can it be held liable pursuant to any agreement concerning Invictus Cable's governance or performance. This includes the SHA, the SPA and any ancillary agreements. All shareholder-related obligations have been fully and irrevocably transferred to Invictus Holding. In particular, Claimant's claim for the specific performance of the Put Option price against Invictus must fail. Invictus thus lacks the standing to be sued (*Passivlegitimation*) in relation to the claims brought by Claimant.

(46) Accordingly, even assuming that the claims fall within the jurisdiction of the ICC Arbitral Tribunal, Invictus no longer maintains any legal nexus to the subject matter of the dispute.

(47) Considering the foregoing, the ICC Arbitral Tribunal is respectfully requested to find that Invictus lacks the required standing to be held liable. The proceedings against it must therefore be dismissed in their entirety.

E. Claimant's Purported Termination of the SHA and its Exercise of the Put Option are Invalid

(48) In the following, Respondents will demonstrate, that no contractual obligations were breached – neither under the SPA nor, even if one were to entertain Claimant's unfounded attempt to invoke the SHA, under the SHA. Accordingly, Claimant's purported termination and exercise of the Put Option are without legal basis and must be dismissed in their entirety.

1. Invictus Did Not Breach the Completion Memorandum

(49) Claimant's core assertion is that Invictus misrepresented Annex 2 of the Completion Memorandum, namely the March 2023 Provisional Financial

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26 Excerpt from the Demerger and Acquisition Agreement dated 27 March 2025 (**Exhibit R-004**).

Overview. According to Claimant, this overview omitted "*a gross [shareholder-loan] receivable from the parent of EUR 1,122,595.16.*"[27] Respondents thereby allegedly breached "*the fundamental warranty*"[28] of Clause 3 of the Completion Memorandum. On that basis, Claimant purports to justify termination of the SHA under Clause 6.1 of the SHA and the exercise of the Put Option. This line of argument is both legally and factually plainly wrong:

(50) Claimant conveniently disregards Clause 2 of schedule 3 of the SPA which explicitly states that "*[...] in the case of intra-group loans for an amount of EUR 1,249,259.81 (as of 31 May 2022), there are no other loans made or agreed to be made to any group company.*"[29] Claimant not only accepted the SPA's terms but expressly agreed to and executed the SPA, thereby acknowledging the loan structure and its limitations. Any attempt to now allege the existence of undisclosed or unauthorized loans is not only factually baseless but a direct contradiction of Claimant's own contractual commitments.

(51) As of 23 March 2023, this loan remained largely unchanged. The March 2023 Provisional Financial Overview – an integral part of the Completion Memorandum – reflected an offset of Invictus Cable's profit against the outstanding shareholder loan. This accounting treatment had no impact on the actual financial position of the parties involved:

(52) *First*, this offset was fully accepted and consistent with the parties' mutual understanding. Claimant itself acknowledged that the loan receivables were disclosed and "*covered by dividends and the tax-group agreement*" for purposes of set-off on reducing balance.[30]

(53) *Second*, according to Clause 2.2 of the Completion Memorandum, Claimant was expressly not entitled to receive any distributions or dividends of profits generated by Invictus Cable for any periods ending on or before the Completion Date – *i.e.* 24 March 2023. Claimant's entitlement, if any, was limited solely to profits accruing from the date of Completion through the end of the relevant financial year.[31] Accordingly, irrespective of the accounting treatment applied in the March 2023 Provisional Financial Overview, Claimant had no right – contractual or otherwise – to the net profit reflected therein.[32] In other words: Since the profit up to 23 March 2023 contractually belonged to Invictus, the offset merely reflected an accounting adjustment. It did not affect the value of the shares acquired by Claimant and was purely formal in nature.

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27 Elcomponics' Request for Arbitration, Section 2.5(a)(iii), ¶ 12.
28 Elcomponics' Request for Arbitration, Section 2.5(a)(v), ¶ 12.
29 Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 2 of the schedule 3, ¶ 14.
30 Elcomponics' Request for Arbitration, Section 2.3, ¶ 10.
31 Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), Clause 2.2, ¶ 7.
32 Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), ¶ 27.

(54) *Lastly*, the March 2023 Provisional Financial Overview is, by its nature, not a finalized balance sheet. Its purpose was to provide Claimant with a reliable overview of the economic condition of Invictus Cable at the time of Completion. That purpose was fully achieved: The provisional status delivered on 23 March 2023 offered an accurate and sufficient overview of the financial situation, as understood and accepted by Claimant.

(55) It must once again be emphasized that Claimant's attempt to reframe the accounting treatment as evidence of an undisclosed or newly granted shareholder loan is entirely misplaced. The shareholder loan in question was disclosed in the SPA and remained materially unchanged as of the Completion Date. No new shareholder loan was granted by Invictus Cable to Invictus following 23 March 2023. Accordingly, no corporate resolutions exist, evidencing such a transaction. Claimant's allegation is therefore not only unsupported by the facts, but an effort to construct a narrative of wrongdoing where none exists.

2. Invictus Disclosed All Financial Liabilities

(56) Claimant submits that "*the corporate-income-tax liability of EUR 428,182.09 pre-dated Completion yet was omitted from the March 23 2023 Balance Sheet*"[33] triggering the Put Option right of Claimant pursuant to Clause 4.6(d)(ii) of the SHA. This allegation is factually incorrect for the following reasons:

(57) *First*, Claimant itself acknowledges that during "*pre-investment diligence and negotiation the Respondents [among others] disclosed an Austrian group-tax arrangement that allowed intra-group set-offs of profits and liabilities*."[34] As such, Claimant was fully aware of said tax structure in place.

(58) *Second*, Claimant's interpretation of the Austrian tax is fundamentally flawed: Claimant had full knowledge that Invictus Cable formed part of a tax group with Invictus. Within the framework of this group taxation regime, corporate income taxes (*Körperschaftssteuern*) of Invictus Cable were correctly offset against the loss carried forward by Invictus with the Austrian tax authorities. This is a tax mechanism permitted under Austrian law for companies within a tax group. As a result of this offsetting, Invictus assumed certain obligations (*e.g.* tax payments) on behalf of Invictus Cable, which in turn gave rise to internal compensation options. They were settled between Invictus and Invictus Cable and appropriately reflected in the financial statements.

(59) *Third*, the March 2023 Provisional Financial Overview reflected this standard accounting treatment, consistent with prior years and the principle of balance sheet continuity. The same approach was applied in the draft balance sheet as of 30 June 2023. Accordingly, no outstanding tax liability *vis-à-vis* the tax authority

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[33] Elcomponics' Request for Arbitration, Section 3.1, ¶ 16.
[34] Elcomponics' Request for Arbitration, Section 2.3, ¶ 10.

existed on either date. Invictus had already settled the tax position within the group framework and offset its resulting claims against Invictus.

(60) Taken together, Claimant's assertion that this tax position was "concealed" is not only false – it is a deliberate misrepresentation of a disclosed and lawfully offset item. The relevant tax treatment was not only visible in the documentation but also discussed during negotiations. Claimant's current position ignores its own prior knowledge and the contractual disclosures it accepted. There is neither a hidden liability of EUR 428,182.09 nor any historic obligation exceeding EUR 250,000 that would justify the exercise of the Put Option. To now reframe a properly disclosed accounting position as a breach is a blatant attempt to manufacture grounds for exit and must be rejected.

3. Invictus Cable Provided Claimant with Financial Statements on a Regular Basis

(61) Claimant's allegation of "*withholding material financial information*"[35] is an equally deliberate attempt to construct a narrative of concealment where none exists.

(62) In reality, Invictus Cable regularly and transparently provided Claimant with comprehensive financial and operational information. This practice was fully aligned with Invictus Cable's internal financial governance procedures and, more importantly, with Clause 4.4 of the SHA. Pursuant to this provision, Invictus Cable was required to deliver (i) annual financial statements within 120 days, (ii) quarterly financial statements within 60 days after the end of each quarter and (iii) upon request, within 30 days, related party transaction details and minutes of advisory board and shareholder meetings.[36]

(63) Invictus Cable fully complied with these obligations by issuing periodic Management Information System ("**MIS**") reports.[37] These reports were shared directly with Claimant and included detailed financial data on assets, equity and liabilities, revenues, profit and loss, as well as operational data such as weekly incoming orders (*Auftragsbestandslisten*). This reporting was conducted monthly, covering the entirety of the financial year.

(64) Additionally, Claimant failed to disclose its own direct involvement in the reporting process: Its designated representative Mr. Sandeep Rajpal regularly attended Invictus Cable's monthly management meetings, which were held virtually as part of the ordinary course of business.[38] These meetings provided financial updates, operational performance and commercial forecasts. Following

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35 Elcomponics' Request for Arbitration, Section 3.1(c), ¶ 17.
36 Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 4.4, ¶ 7.
37 *See*, *inter alia*, MIS Report December 2023 (**Exhibit R-008**); MIS Report April 2024 (**Exhibit R-009**); MIS Report October 2024 (**Exhibit R-010**); MIS Report March 2025 (**Exhibit R-011**).
38 *See e.g.* Consolidated invitations to the monthly Management Meetings (**Exhibit R-012**).

each meeting, Mr. Sandeep Rajpal was provided with the minutes of the meeting,[39] thereby further ensuring Claimant's ongoing access to all relevant information.

(65) In addition to the disclosure of MIS reports, Claimant's participation in the monthly management meetings and the delivery of the minutes thereof collectively demonstrate that Invictus Cable not only met but in fact exceeded the reporting obligations set forth in Clause 4.4 of the SHA. Claimant's allegation omits these critical facts and presents a one-sided narrative unsupported by the record.

4. Rent and Cost Increases Were Lawful and Disclosed

(66) Claimant's allegations of "*unauthorized related-party enrichment*"[40] are a futile attempt to support Claimant's narrative of obstruction:

(67) Any adjustment to rent and operating expenses was neither concealed nor discretionary: *First*, the rent increase was a direct and contractually mandated result of the Austrian Consumer Price Index (*Verbraucherpreisindex*) adjustment mechanism – transparently embedded in the lease agreement and fully accessible to Claimant in the data room. *Second*, the increase in operating-cost recharges reflected the documented rise in energy prices for electricity and district heating – market-driven developments entirely outside Invictus' control. These adjustments were not new terms but the mechanical application of pre-existing contractual provisions.

(68) Claimant's attempt to present these standard commercial adjustments as "*willful misconduct*" or a breach of Clauses 4.2(k), (n), (o), or (q) of the SHA is a deliberate distortion of both fact and law: There was no variation of budgeted expenditure, no new intra-group agreement, and no deviation from the agreed framework that would have triggered a Reserved Matter. The payments were neither hidden nor unauthorized – they were executed in accordance with the governing agreements and economic conditions. Claimant's argument is an attempt to support the invocation of the Put Option, not a genuine claim of contractual breach.

5. Failure to Establish an Advisory Board was Solely Claimant's Fault

(69) Claimant's attempt to invoke an alleged non-establishment of the Advisory Board as a ground for termination of the SHA lacks legal merit and constitutes a clear misapplication of the contractual framework.

(70) Claimant seems to ignore the fact that Clause 4.1 of the SHA imposes a joint obligation on both (!) shareholders to constitute an Advisory Board.[41] Throughout, Invictus consistently undertook all reasonable and necessary steps to facilitate the

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[39] *See* Consolidated emails following-up on the monthly Management Meetings (**Exhibit R-013**).

[40] Elcomponics' Request for Arbitration, Section 3.1(d), ¶¶ 17 *et seq*.

[41] Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**); Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 4.2.

establishment of the Advisory Board. It was, in fact, Claimant who failed to comply with this joint obligation by not nominating candidates for appointments. Claimant made no meaningful effort to engage in the process of establishing the Board or scheduling its meetings.

(71) To date, not a single name has been proposed by Claimant for Advisory Board membership. The topic was first raised in a meeting held in Delhi in August 2023, during which Mrs. Anu Sharma committed to follow up, but no minutes of that meeting have ever been shared with Invictus, nor has any further action been taken. Invictus proactively addressed the issue and repeatedly signaled its readiness to proceed, yet Claimant remained passive. To now invoke this as a basis for exercising the Put Option is opportunistic and constitutes a gross abuse of contractual rights. Claimant's own inaction and lack of interest in the Advisory Board cannot retroactively be misused as a termination trigger under Clause 6.1(a) of the SHA, nor does it amount to a material breach entitling Claimant to exit the joint venture.

(72) Lastly, under Austrian corporate law, shareholders of a limited liability company (*GmbH*) are vested with extensive information rights and the authority to issue binding instructions to management (*Weisungen*). This results in a structurally high degree of shareholder control, which was also reflected in the regular monthly meetings attended by a representative of Claimant (*see* above ¶ 64.). In such a governance framework, the establishment of a supervisory board is not only atypical but functionally redundant. Against this backdrop, the shared obligation under Section 4.1 of the SHA does not amount to a material breach.

F. Claimant's Calculation of the Put Option Price is Inconclusive

(73) Claimant's assertion that the principal monetary remedy lies in the specific performance of the Put Option, allegedly yielding a purchase price of approximately EUR 4.1 million,[42] is entirely unsubstantiated and must be rejected as legally and factually deficient.

(74) The calculation presented is nothing more than a bare allegation. Claimant fails to provide any verifiable data to support the alleged enterprise value of over EUR 16.5 million. There is no disclosure of the actual EBITDA figures for FY 2023 and 2024, no explanation of how the so-called "*inflated related party charges*"[43] or "*United States revenues*"[44] were identified or removed, and no documentation to demonstrate how the formula in Clause 4.6(d) of the SHA was applied.

[42] Elcomponics' Request for Arbitration, Section 4.2, ¶¶ 20 *et seq*.
[43] Elcomponics' Request for Arbitration, Section 4.2, ¶¶ 20 *et seq*.
[44] Elcomponics' Request for Arbitration, Section 4.2, ¶¶ 20 *et seq*.

(75) This lack of transparency renders the entire valuation exercise speculative and legally irrelevant. A party seeking specific performance of a contractual pricing mechanism must, at a minimum, present a coherent, traceable, and evidence-based calculation. Claimant has done none of this.

(76) In the absence of any substantiated financial data or credible methodology, the claim for specific performance is not only unconvincing – it is procedurally and substantively inconclusive.

G. Procedural Aspects

1. Arbitration Agreement

(77) As elaborated above, Respondents submit that the present dispute falls outside the scope of Clause 10.2 of the SHA, which Claimant erroneously relies upon as the jurisdictional basis for these arbitral proceedings (*see* ¶ 25).

(78) The core subject matter of this arbitration concerns alleged breaches of representations and warranties governed exclusively by the SPA and the Completion Memorandum (*see* ¶ 32). Therefore, these claims are subject to Clause 11.2 of the SPA, and Clause 6.3 of the Completion Memorandum, both of which contain the following arbitration clause:

> "*This Deed and the rights and obligations arising out of or in connection with this Deed shall be governed by and construed with Austrian law. If the dispute is not resolved amicably, the dispute shall be referred to and finally resolved by binding arbitration in accordance with the rules of VIAC (Wiener Regeln). The seat of arbitration shall be Amsterdam and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*"

(79) Accordingly, Respondents submit that the ICC Arbitral Tribunal lacks jurisdiction over Claimant's claims.

2. Arbitral Tribunal and Language of the Arbitration

(80) Clause 10.2 of the SHA, Clause 11.2 of the SPA, and Clause 6.3 of the Completion Memorandum each provide that "*the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*"[45] Accordingly, all three arbitration clauses consistently provide for a sole arbitrator. Given the uniform reference to a sole arbitration in these clauses, the Secretariat by letter dated 21 July 2025

[45] Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 10.2; Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 11.2; Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), Clause 6.3.

informed the Parties, that the Court will appoint a sole arbitrator according to Article 12(3) of the ICC Rules.[46]

(81) Moreover, all three arbitration clauses unequivocally also designate English as the language of arbitration.

(82) For avoidance of any doubt, however, these statements shall in no way be construed as submission to the jurisdiction of the ICC Arbitral Tribunal.

3. Governing Rules and Applicable Law

(83) Clause 10.2. of the SHA provides that "*this Agreement shall be governed by and construed in accordance with English Law, subject to mandatory provisions of Austrian and Indian laws.*"[47] In contrast, Clause 11.2 of the SPA and Clause 6.3 of the Completion Agreement stipulate that "*this Deed and the rights and obligations arising out of or in connection with this Deed shall be governed by and construed in accordance with Austrian law*."

(84) As submitted by Respondents, Clause 11.2 of the SPA and Clause 6.3 of the Completion Memorandum are the provisions applicable to the present dispute.

H. Relief Sought

(85) In view of the above, Respondents request that the ICC Arbitral Tribunal (or the sole arbitrator, as the case may be) issue the following

AWARD:

1. Decline jurisdiction over Claimant's claims;

2. *In the alternative*, dismiss Claimant's claims in their entirety;

3. Order Claimant to reimburse Respondents for all their all costs of this arbitration, including but not limited to any administrative fees and expenses, arbitrators' fees and expenses, legal, experts' or other costs, fees and expenses as well as internal costs, plus interest thereon from the day following the service of the Award until the day of payment.

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46 *See* the Secretariat's letter to the Parties dated 21 July 2025.
47 Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 10.1.

Vienna, 4 August 2025

Baker McKenzie Rechtsanwälte LLP & Co KG
on behalf of Respondents, *Invictus GmbH* and *Invictus Cable GmbH*

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